



File No.: EXP202211234

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On September 6, 2022, a complaint was filed with the Spanish Agency for Data Protection against the responsible party of the website sexchapero.com (hereinafter, the complained party).

The reasons for the complaint are as follows:

Complaint transferred from the Catalan Agency for Consumer Affairs against the responsible party of the website sexchapero.com, in which the complainant's phone number and first name appeared included in an advertisement published on the site. It expressly denounces that advertisements can be published without verifying the published phone number.

Relevant documentation provided by the complainant:

- Screenshot showing the complainant's phone number published on <https://sexchapero.com>.

SECOND: On October 24, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

THIRD: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

There is no record in the complaint that the complainant has attempted to exercise their right to erasure using the contact form or via WhatsApp messaging, communication channels offered by the website.

Requested from the registrar of the domain "sexchapero.com", IONOS CLOUD S.L.U., the ownership data of this domain, on November 14, 2022, a written response to the request was received by this Agency informing that the owner of the referred domain is A.A.A. with NIF ***NIF.1.

Requested from the owner of the website in question to inform this Agency of the data held in their systems regarding the owner of the advertisement, on November 17, 2022, a written response was received by this Agency informing of the following aspects:

- On August 10, 2022, they received an email sent by the complainant requesting the removal of the phone number from the advertisement, and it was immediately removed.
- They inform of the data they have, including the date and time of registration, the session IP, and an email address from the GMAIL service.

On November 15, 2022, a search by phone number was conducted on the website of the advertisement mentioned in the complaint, with no results found.

Requested the ownership of the IP at the time of the advertisement registration from VODAFONE SPAIN, S.A.U., operator of the internet address provided by the responsible party of the complained website, on February 20, 2023, a written response was received by this Agency from this entity stating that "The IP addresses requested by the Agency are dynamic, not static, which implies that in order to identify the owner of a dynamic IP, it is necessary to access traffic data. For such purposes, traffic data is excluded from the duty of collaboration, in accordance with the provisions of Article 52.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights, which includes this exclusion and reserves the transfer of data solely for the fulfillment of the obligations provided for in Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks, and with prior judicial authorization requested by one of the authorized agents."

Due to the above, and since the IP address of the advertisement is the only available data that could lead to the identification of the author of the publication of the complainant's personal data, this

inspection has not been able to determine such authorship.

Regarding the causes that have made the reported facts possible, it is observed in the advertiser registration form that the phone number is not mandatory, which implies that the website's registration system will not perform any verification of the authenticity of the provided phone number. However, a simulation was carried out by entering the non-existent phone number "****TELÉFONO.1", verifying that the registration was completed without any verification of the entered phone number. It has also been verified that it is possible to complete the registration without activating the switch for "I accept the terms of use and privacy policy" at the end of the form.

LEGAL GROUNDS

I

Competence

In accordance with the functions that Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR)

3/7

grants each supervisory authority, and according to the provisions of Articles 47 and 48.1 of the Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Processing of Special Categories of Personal Data

Article 9 of the GDPR, which regulates the processing of special categories of personal data, establishes the following:

"1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited.

2. The provisions of paragraph 1 shall not apply when one of the following circumstances applies:

a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;

b) the processing is necessary for compliance with a legal obligation to which the data controller is subject or for the exercise of rights or the fulfillment of obligations in the field of employment law and social security and social protection law, insofar as authorized by Union or Member State law or a collective agreement under Member State law that provides adequate safeguards for the fundamental rights and interests of the data subject;

c) the processing is necessary to protect the vital interests of the data subject or of another natural person, in the event that the data subject is not physically or legally capable of giving consent;

d) the processing is carried out, in the course of its legitimate activities and with appropriate safeguards, by a foundation, association, or any other not-for-profit body whose purpose is political, philosophical, religious, or trade union in nature, provided that the processing relates exclusively to the current or former members of the organization."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/7

such organizations or individuals who maintain regular contacts with them in relation to their purposes and provided that personal data is not communicated outside of them without the consent of the data

subjects;

- e) the processing relates to personal data that the data subject has made manifestly public;
- f) the processing is necessary for the formulation, exercise, or defense of claims or when courts act in the exercise of their judicial function;
- g) the processing is necessary for reasons of essential public interest, based on Union law or the laws of the Member States, which must be proportional to the objective pursued, respect the right to data protection in essence, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject;
- h) the processing is necessary for preventive or occupational medicine, assessment of the worker's capacity, medical diagnosis, provision of health or social care assistance or treatment, or management of health and social care systems and services, based on Union law or the laws of the Member States or pursuant to a contract with a healthcare professional and without prejudice to the conditions and guarantees provided for in paragraph 3;
- i) the processing is necessary for reasons of public interest in the field of public health, such as protection against serious cross-border threats to health, or to ensure high standards of quality and safety of health care and of medicines or medical products, based on Union law or the laws of the Member States that establish adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy;
- j) the processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, based on Union law or the laws of the Member States, which must be proportional to the objective pursued, respect the right to data protection in essence, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject.

3. The personal data referred to in paragraph 1 may be processed for the purposes mentioned in paragraph 2, letter h), when their processing is carried out by a professional subject to the obligation of professional secrecy, or under their responsibility, in accordance with Union law or the laws of the Member States or with the rules established by the competent national authorities, or by any other person also subject to the obligation of secrecy in accordance with Union law or the laws of the Member States or the rules established by the competent national authorities.

4. Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or data concerning health.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/7

III

Legality of Processing

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure, or destruction."

Including images that identify or make identifiable a person in published videos constitutes processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR.

In these cases, as in the case subject to the complaint, the usual legitimizing ground is generally consent. And it is the person who uploads the personal data and the images that can be viewed without any limitation who must demonstrate that they have that consent.

For this processing to be carried out lawfully, it must comply with the provisions of Article 6.1 of the

GDPR, which states:

“1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/7

IV

Conclusion

The claim presented was directed against the responsible party of the website sexchapero.com; the express reason was that advertisements could be published without verifying the published phone number.

Upon reviewing the privacy policy of the respondent, it is confirmed that, in the advertiser registration form for services, the phone number is not mandatory, so the website's registration system will not perform any checks on the authenticity of the provided phone number.

The advertisement containing personal data has been removed by the responsible party of the website indicated in the complaint.

Even with the cooperation of the responsible party of the website where the advertisement was published, it has not been possible to determine the authorship of the contested publication (the claimant suspects it was their ex-partner) because the operator has not provided the ownership of the session IP of the publication, citing Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks, as this IP is dynamic and three months have passed between the publication of the advertisement and the receipt of the request for identification of the owner.

In accordance with the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED:
FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the respondent and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article

46.1 of the aforementioned Law.

940-020323

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/7

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es